

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE ENROLLED ACT No. 1018

AN ACT to amend the Indiana Code concerning human services.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 12-17-12-11 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. The division may approve a grant from the fund to an applicant if the applicant demonstrates to the division that the applicant is able to do the following:

- (1) Provide a physical environment that is safe and appropriate to the various age levels of the children to be served.
- (2) ~~Provide transportation, if necessary, to and from a school or schools to the facility operated by the applicant.~~
- (3) (2) Provide program activities that are appropriate to the various age levels of the children to be served and that meet the developmental needs of each child.
- (4) (3) Provide efficient and effective program administration.
- (5) (4) Provide a staff that meets standards set by the division under section 17 of this chapter.
- (6) (5) Provide for nutritional needs of children enrolled in the program.
- (7) (6) Provide emergency health services to children served by the program.
- (8) (7) Operate a school age child care program in accordance with the cost and expense standards set by the division under section 17 of this chapter.

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SECTION 2. IC 12-17-12-17 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 17. The director of the division shall adopt rules under IC 4-22-2 necessary to carry out this chapter, including rules specifying the following:

- (1) Standards for the hiring of staff for a school age child care program.
- (2) Cost and expense standards for **the following:**
 - (A) Establishing and operating a school age child care program within a school and within a facility other than a school.
 - (B) **Transporting a child to a facility where the child does not attend school.**
- (3) A sliding fee scale for use by school age child care programs that are operating under a grant from the fund.
- (4) Minimum staff to child ratios for a school age child care program.
- (5) Physical space requirements for a school age child care program, including indoor and outdoor space.
- (6) Nutrition requirements for a school age child care program.
- (7) Standards for the provision of emergency health services in a school age child care program.
- (8) Application guidelines and deadlines.
- (9) A method for establishing priority of applicants.



Speaker of the House of Representatives

President of the Senate

President Pro Tempore

Governor of the State of Indiana

Date: _____ Time: _____

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